

Rather than deny the motion outright as unsupported by evidence, the personal appearance of the parties at the hearing is required on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel**. Department 30 is located at 10820 Justice Center Drive, Roseville, California 95678. Defendant Mohanad Alomar should be prepared to testify as to the grounds supporting the motion to set aside judgment.

3. S-CV-0043323 Miller, Scott A v. Dolmo, Bess-Carolina

These tentative rulings are issued by the **Honorable Charles D. Wachob**. If oral argument is requested, it will be heard on **September 24, 2026 at 8:30 a.m. in Department 2** by the Honorable Charles D. Wachob. Department 2 is located at 101 Maple Street, Auburn, California 95603. If the party who requests oral argument is late appearing, the court will adopt the tentative ruling.

Motion to Set Aside / Reconsider April 9, 2026 Rulings

Ms. Dolmo moves to set aside the court's April 9, 2026 rulings pursuant to Code of Civil Procedure section 473(b) and to reconsider its rulings pursuant to Code of Civil Procedure section 1008. This motion concerns the court's April 9, 2026 order granting Northern California Fertility Medical Center ("The Clinic")'s motion to enforce settlement, the court's April 9, 2026 order denying Ms. Dolmo's motion for contempt, for which oral argument was heard the same day (law and motion minutes, Apr. 9, 2026; order on CCP § 664.6, Apr. 9, 2026); and the court's ruling on submitted matter heard at oral argument on February 20, 2026 with a ruling on submitted matter issued on April 9, 2026 (Ruling on submitted matter, Apr. 9, 2026). The Clinic opposes the motion.

Preliminarily, the court's April 9, 2026 ruling Ms. Dolmo now challenges came about to enforce the parties' global settlement agreement whereby Mr. Miller would dismiss his claims and Ms. Dolmo agreed to dismiss her claims. The agreement was entered into on August 4, 2025, where the parties including Ms. Dolmo affirmed the terms of the agreement under oath in open court on August 4, 2025, as recorded in the court minutes. (Court minutes, Aug. 4, 2025.) As a result of that global settlement, Ms. Dolmo not only dismissed her claims but claims against her were also dismissed. (Civil law and motion minutes, Apr. 9, 2026.)

The court may "upon any terms as may be just" set aside an order due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) A motion to set aside an order must be made "within a reasonable time, in no case exceeding six months" from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, Ms. Dolmo argues the court's tentative ruling on April 7, 2026 scheduling oral argument for April 9, 2026 provided insufficient notice pursuant to Code of Civil Procedure section 1005(b). This argument is misplaced because Section 1005(b) sets forth the notice a party must provide for a noticed motion; it does not limit the court as to when oral argument on a noticed motion will be heard. Ms. Dolmo argues that she

was denied the opportunity to be heard on April 9, 2026 because she had filed a request for continuance on April 7, 2026 that was not ruled on and because she was unable to login by remote appearance. Ms. Dolmo did not invoke the procedures to schedule an ex parte hearing pursuant to California Rules of Court, rule 3.1200 et seq. and Local Rule 10.8, nor did she schedule a motion hearing pursuant to Local Rule 20.2; accordingly, the request was not properly before the court and is now moot. Self-represented litigants are held to the same procedural requirements as parties represented by counsel. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–85.) While the court’s file shows that Ms. Dolmo signed up for a remote appearance for the hearing on April 9, 2026, at 8:30 a.m. when the matter was called, Ms. Dolmo did not appear remotely or in person. Ms. Dolmo does not provide enough information explaining her nonappearance to justify Section 473(b) relief. Moreover, Ms. Dolmo falls short of showing sufficient “mistake, inadvertence, surprise, or excusable neglect” to justify Section 473(b) relief on any basis.

A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.) Here, Ms. Dolmo argues the court did not consider all briefing submitted, the court considered inadmissible evidence by considering settlement negotiations of the parties, and the court has all the information it needs to find Mr. Miller in contempt. These arguments fall short of showing new or different facts, circumstances, or law that could not have reasonably been produced for the underlying hearing.

Ms. Dolmo also asks the court to reconsider the April 9, 2026 ruling on submitted matter denying in part her motion to seal as to four documents the court denied the motion because the court could not locate and/or identify the documents in the court file. Ms. Dolmo provides some additional information, including the first page of two of the documents and different filing dates for two of the documents. However, the correct dates and first pages of the documents in question constitute information that Ms. Dolmo had at the time the underlying motion was heard and which she could have presented it to the court. Moreover, the court denied one of the documents because there were seven documents filed on that date and defendant does not identify which three of those seven Ms. Dolmo was seeking to seal; she does not address this issue in her current motion for reconsideration. As to the fourth document, Ms. Dolmo does not provide any additional information for the court to be able to locate that document in its file. Ms. Dolmo therefore falls short of showing new or different facts, circumstances, or law that could not have reasonably been produced for the underlying hearing.

Based on the foregoing, the motion to set aside and the motion for reconsideration are denied in their entirety.

Motion to Dismiss and Change Venue

Ms. Dolmo moves to dismiss Mr. Miller's complaint against her and for transfer of her claims against Mr. Miller to Sacramento County Superior Court. Northern California Fertility Medical Center opposes the motion.

Preliminarily, Ms. Dolmo's moving papers exceed California Rule of Court, rule 3.1113(d)'s page limit of 15 pages excluding the caption page, the notice of motion, and Ms. Dolmo's declaration. The court exercises its discretion to consider this brief in its entirety, but Ms. Dolmo is admonished to pay close attention to the California Rules of Court.

The motion is denied. The motion to dismiss Mr. Miller's claims against Ms. Dolmo is moot in light of the court's April 9, 2026 ruling granting The Clinic's motion to enforce settlement whereby the court ordered Mr. Miller's operative complaint dismissed with prejudice as to all parties. The dismissal is the result of the parties' global settlement on August 4, 2025 where the parties including Ms. Dolmo affirmed the terms of the agreement under oath in open court on August 4, 2025, as recorded in the court minutes. (Court minutes, Aug. 4, 2025.) As a result of that global settlement, Ms. Dolmo not only dismissed her claims but claims against her were also dismissed. (Civil law and motion minutes, Apr. 9, 2026.)

As to the motion to transfer venue, a court may change the place of trial for various reasons, including when the complaint was filed in the improper court, an impartial trial cannot be had, or for convenience of the witnesses. (Code Civ. Proc., § 397, subds. (a)–(c).) Here, however, there are no grounds to justify an order transferring venue because Ms. Dolmo's claims against Mr. Miller were also dismissed with prejudice in the court's April 9, 2026 ruling pursuant to the agreement of the parties affirmed by Ms. Dolmo under oath in open court on August 4, 2025.

Ms. Dolmo also advances arguments that the April 9, 2026 rulings should be set aside pursuant to Code of Civil Procedure sections 473(b) and 1008. These arguments are duplicative of Ms. Dolmo's motion to set aside or reconsider the April 9, 2026 rulings and the request is denied for the same reasons outlined in the ruling above.

The motion to dismiss and to transfer venue is denied in its entirety.

4. S-CV-0050352 Marksys Holdings v. Redstone Print & Mail

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

Counsel for Redstone Print & Mail, Inc. moves to be relieved as counsel. No response to this motion has been filed.